

Authority for Personal Data
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Dear Mr. Van der Burg,

In a letter dated March 5, 2024, the Authority for Personal Data (AP) was consulted regarding the draft for the general administrative order containing rules for the implementation of EU regulations on borders and security (Implementation Decision EU Regulations on Borders and Security) (hereinafter: the draft) based on the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) and Article 35b, first paragraph, under b, of the Police Data Act (Wpg) and Article 27, third paragraph, of the Judicial and Criminal Procedure Data Act (Wjsg).

The AP has objections because the provisions regarding Article 2 of the draft do not pass the test according to point 5 of the framework in the annex. If adopted unchanged, these will have to be set aside due to conflict with higher law.

Additionally, the AP has another remark on the draft regarding the choice for joint data controller responsibility for processing under the ETIAS and EES regulations.

Main Points

- Access to and direct querying of the SIS must be explicitly limited to the categories of officials who are actually tasked with the duties indicated by the regulation.
- For processing under the ETIAS and EES regulations, the data controller responsibility can be clearly assigned to a minister. The Minister of Defence seems to be the most appropriate.

State Secretary for Justice and Security

P.O. Box 20301
2500 EH The Hague

Date

June 4, 2024

Our reference

2024-007465

Your letter dated

March 5, 2024

Your reference

5279547

Subject

Legislative assessment draft for the Decision implementing EU regulations on borders and security

Date

June 4, 2024

Our reference

2024-007465

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Scope of the Draft

The present draft has been prepared for the implementation of several provisions of the Implementation Act for EU regulations on borders and security.

The draft serves for the further operationalization of the following regulations:

- SIS regulations (Schengen Information System);
- EES regulation (Entry and Exit System);

- ETIAS regulation (Visa Waiver Travel and Authorization System);
- VIS regulation (Visa Information System).

More specifically, the draft contains the following relevant subjects:

1. the designation of a data controller for the implementation of the VIS, ETIAS, and EES regulations;
2. the designation of a VIS authority;¹
3. the designation of an immigration authority based on the EES and ETIAS regulations;
4. an amendment to the Police Data Decision for the implementation of the ETIAS and VIS regulations;
5. access to, direct querying, and consultation of data in the SIS by the designated competent authorities.

Legislative Assessment

The competent authorities for the implementation of the SIS regulations, based on Article 2 of the draft The SIS regulations stipulate that national competent authorities tasked with the execution of the duties mentioned in the regulations have the right to access the data and, where applicable, direct querying of the SIS.

Article 2 of the draft designates the competent authorities. Consequently, these authorities have the right to access the data and, where applicable, direct querying of the SIS.

The requirements imposed on the processing of personal data include that such processing must be limited to what is necessary for the purposes.² Access to the data in the SIS by the competent authorities must therefore be limited to the officials tasked with executing a specific duty arising from the SIS regulations. Depending on the situation, this may apply to only a small part of the personnel of the competent authority.

However, Article 2 of the draft does not specify which officials have the right to access the data and, where applicable, direct querying of the SIS, nor does it indicate how this will be determined.

¹ These are authorities with tasks in the area of visa issuance, border control, and immigration supervision and gain access to the VIS.

² Article 5, first paragraph, under b ('purpose limitation') and c ('data minimization') of the GDPR; Article 4, first paragraph, under c of the EU Directive on data protection in criminal matters (RGR).

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determined and announced which officials these are. Particularly in light of the often criminal context of the processing, it is advisable that careful consideration is given and that it is also transparently and verifiably recorded which officials have access. In the opinion of the AP, in this context, a register to be maintained and publicly disclosed by the data controller, containing the specific titles of the positions that are authorized, is an essential safeguard.

The AP concludes that the draft must provide for an obligation to maintain a public register with the titles of positions that have access to the SIS and/or inquiries of the SIS.

Joint data controller responsibility of the Minister of Defence and the Minister of Justice and Security
There is a joint data controller responsibility when two or more data controllers jointly determine the purposes and means of processing. For the protection of the rights and freedoms of data subjects and the responsibility and liability of data controllers and processors, it is necessary, among other things regarding the supervision by and the measures of the supervisory authorities, that the established responsibilities are clearly assigned.

In the application of the ETIAS regulation, the responsibility for the processing of personal data is borne by the national ETIAS unit, the Royal Netherlands Marechaussee (KMar). In the application of the EES regulation, the largest role regarding the input of personal data into the EES is fulfilled by the

national border authority, also the KMar.

Regarding the designation of a data controller, the draft opts to designate the Minister of Justice and Security and the Minister of Defence as joint data controllers for both the EES and the ETIAS regulations. This choice is motivated from an administrative perspective, namely that the KMar falls under the authority of the Minister of Justice and Security on one hand and is administratively under the Minister of Defence on the other hand. According to Article 26 of the GDPR, both departments will, according to the explanation accompanying the draft, make an internal arrangement for compliance with obligations under the GDPR.

However, the purposes and means of these processes are not determined by these designated authorities; they directly follow from the regulations. This effectively means that only administrative aspects remain for the designated data controller, such as organizing that the rights of data subjects are respected. In such a context, there can be no joint data controller responsibility in the sense of the GDPR, as there is no joint determination of purposes and/or means, and this is also not necessary. Given the fact that the KMar is administratively under the Minister of Defence, it is, in the opinion of the AP, appropriate to clearly assign the data controller responsibility to this minister. Under the VIS regulation, the KMar has also been designated as the VIS authority. Here too, one data controller has been chosen, namely the Minister of Foreign Affairs.

The AP concludes that the data controller responsibility for the processes under both the EES and the ETIAS regulations can be clearly assigned to the Minister of Defence or, if preferable, to the Minister of Justice and Security.

Workload of the AP

Aspects regarding the workload of the AP have been addressed and do not require further attention in this context.

Disclosure

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

8 Article 8 of the draft and paragraph 2.5 of the explanatory memorandum.

Date

June 4, 2024

Our reference

2024-007465

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Assessment Framework AP

The AP assesses whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);

3. the interference is not disproportionate to that objective, which particularly implies a balancing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under what circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

In this context, the AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), as well as Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680) and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent with respect to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.